

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION DIRECTING THE PLANNING DEPARTMENT TO REVIEW THE UNIFIED DEVELOPMENT CODE AND PROVIDE A RECOMMENDATION TO THE GOVERNING BODY REGARDING THE ALLOWANCE OF A GREATER VARIETY OF TREES AND SMALLER TREE SIZES IN NEW RESIDENTIAL DEVELOPMENTS.”

WHEREAS, the City of Cheyenne has adopted a Unified Development Code (UDC) to establish standards for land development, including requirements for tree planting in new residential projects;

WHEREAS, the City’s current UDC provisions governing plantings prioritizes larger-maturing shade trees as part of its urban forestry goals, including development of a long-term community tree canopy;

WHEREAS, the City Council has received correspondence from members of the development community expressing concern that the current UDC provisions do not adequately account for smaller lot sizes, easements, or other site constraints that may make planting larger-maturing trees impractical;

WHEREAS, the correspondence suggests that allowing for certain smaller-maturing ornamental and fruiting tree varieties could provide viable alternatives that balance neighborhood aesthetics, environmental benefits, and infrastructure protection, with the practical needs of smaller lot development and housing affordability;

WHEREAS, the Urban Forestry Division has noted the significant long-term benefits of shade trees to the community, while recognizing that tree requirements must also be practical and adaptable to varied lot sizes and development conditions; and

WHEREAS, the Governing Body finds it appropriate to further study this issue to ensure the UDC achieves the intended goals of neighborhood livability, urban canopy growth, and infrastructure protection, while also providing flexibility for smaller lot developments.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Planning Department, in consultation with the Urban Forestry Division, and relevant stakeholders, is hereby directed to review the Unified Development Code’s plantings requirements and evaluate the feasibility of allowing a greater variety of trees, including smaller-maturing species, to be used in new residential developments where lot size, easements, or other conditions limit the practicality of larger shade trees;

BE IT FURTHER RESOLVED, that the Planning Department shall submit to the Governing Body a written recommendation for potential amendments to the UDC that better balance the City’s long-term tree canopy and environmental goals with the practical needs of smaller lot development and housing affordability considerations; and

BE IT FINALLY RESOLVED, that the recommendation shall be presented to the Governing Body within forty-five (45) days of adoption of this resolution.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk